

Form No.HCJD/C-121
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Civil Revision No.2048 of 2013

Muhammad Arshad & 4 others

Versus

Safdar Ali

JUDGMENT

<i>Date of hearing:</i>	<i>16.06.2021</i>
<i>Petitioner(s) by:</i>	<i>Mr. Muhammad Hanif Niazi, Advocate.</i>
<i>Respondent(s) by:</i>	<i>Mr. Ijaz Khalid Khan Niazi, Advocate.</i>

Sultan Tanvir Ahmad, J:- This judgment will dispose of the main petition along with the entire pending miscellaneous applications including the application for condonation of delay.

2. This revision petition is directed against the judgment and decree dated 04.06.2013 passed by the learned Additional District Judge, Ahmad Pur Sial, District Jhang whereby the judgment and decree dated 19.11.2012 passed by the learned Trial Court was set-aside and the appeal was allowed.

3. The Petitioners filed suit for declaration with the averments that the Petitioners are entitled to suit land on the basis of deed No.207 dated 28.08.1990. The petitioners allegedly purchased 14-Kanal and 03-Marla land but later on it transpired that Revenue Authorities cancelled the land of the Sellers/Respondents vide

Mutation No.6020. As a result thereof the Petitioners were left with only 03-Kanal and 09-Marla land instead of 14-Kanal and 03-Marla. The suit was decreed in favour of the Petitioners. Aggrieved from the same, the Respondents filed Civil Appeal No.16 of 2013.

4. The learned First Appellate Court discussed the evidence and the record in material detail and disagreed with the findings of the learned Trial Court. One of the reasons for disagreeing with the learned Trial Court was the delay in filing the suit for declaration by the Petitioners. The Mutation No.6020 by way of which the land in question was reduced was sanctioned on 05.12.1990, whereas, the suit for declaration was filed on 20.02.2007 i.e. after almost 17 years of the Sale Deed and cancellation of the Mutation by the Revenue Authorities. The learned First Appellate Court reached to the conclusion that the contention of the Petitioners regarding lack of knowledge of the *factum* of reduction in land and cancellation of mutation until a few days prior to filing of the suit is highly improbable and that the same could not be substantiated by confidence-inspiring evidence. The appeal was accepted by the learned First Appellate Court and judgment and decree dated 19.11.2012 of the learned Trial Court was set aside and the suit was dismissed. Being aggrieved from that, the present civil revision has been filed by the Petitioners.

5. The present revision petition was filed on 16.09.2013 against the judgment which was passed on 04.06.2013. This petition has been filed after a considerable delay from the period stipulated under section 115 of the Code of Civil Procedure, 1908. The Copying Agency delivered

certified copy of the impugned order on the same day on which it was applied for i.e. 10.06.2013. The learned counsel for the Petitioners contended that the last day of summer vacation of this Court was 07.09.2013 and has not disputed that the Revision Petition is time-barred. The C.M. No.2-C of 2013 filed under the Limitation Act, 1908 mentions no reason for the delay apart from declaring it unintentional.

6. Learned counsel for the Petitioners has submitted that while considering the delay in filing of revision, this Court should be more liberal as compared to any other legal proceedings. Further submitted that the certified copy of the learned Trial Court was issued on 22.06.2013 and limitation should be calculated from the day when the certified copy was issued by the learned Trial Court. The learned counsel has further added that no limitation applies to a petition under Section 115 of the Code of Civil Procedure, 1908 in view of the *suo moto* powers conferred under the said provision of law. The learned counsel has placed reliance on the cases titled Government of N.W.F.P. through Chief Secretary and 3 others versus Abdul Malik (1994 S C M R 833), Muhammad Iqbal (deceased) through L.Rs. versus Additional District Judge and others (2019 Y L R 43), Hafeez Ahmad and others versus Civil Judge Lahore and others (P L D Supreme Court 400) Muhammad Mian versus Syed Shamimullah and 2 others (1995 S C M R 69), Muhammad Bashir and another versus Province of Punjab through Collector of District Gujrat and others (2003 S C M R 83), Shujahat Hussain versus Muhammad Habib and another (2003 S C M R 176) and

Haji Rehmdil versus The Province of Balochistan and another (1999 S C M R 1060).

7. Conversely, learned counsel for the Respondent has opposed the contentions of the learned counsel for the Petitioners and has relied upon cases titled City District Government, Lahore through District Coordination Officer, Lahore versus Mian Muhammad Saeed Amin (NLR 2007 Civil 47) and Allah Dino and another versus Muhammad Shah and others (NLR 2001 Civil 574).

8. I have heard the arguments and with the able assistance of the learned counsel for the parties record is perused.

Section 115 of CPC is as follows:-

115. Revision. 1[(1) The High Court may call for the record of any cause which has been decided by any Court subordinate to such High Court and in which no appeal lies thereto, and if such subordinate Court appear—

(a) to have exercised a jurisdiction not vested in it by law, or

(b) to have failed to exercise a jurisdiction so vested, or

(c) to have acted in the exercise of its jurisdiction illegally or with material irregularity,

the High Court may make such order in the case as it thinks fit.]

2[Provided that, where a person makes an application under this sub-section, he shall, in support of such application, furnish copies of the pleadings, documents and order of the subordinate Court and the High Court shall, except for reasons to be recorded, dispose of such application without calling for the record of the subordinate Court,]

3[Provided that such application shall be made within 90 days of the decision of the Subordinate Court which shall provide a copy of such decision within 3-days thereof, and the High Court shall dispose of such application within three months].

4[(2) The District Court may exercise the powers conferred on the High Court by sub-section (1) in respect of any case decided by a Court subordinate to such District Court in which no appeal lies and the amount or value of the subject-matter whereof does not exceed the limits of the appellate jurisdiction of the District Court.

(3) If any application under sub-section(1) in respect of a case within the competence of the District has been made either to the High Court or to the District Court, no further such application shall be made to either of them.

(4) No proceedings in a revision shall be entertained by the High Court against an order made under sub-section (2) by the District Court].

There are two instances in which the Court can exercise the revisional powers:-

- (i) On its own and which is exercised by this Court under sub-section (1) of Section 115 C.P.C.
- (ii) On the application of the aggrieved person which is provided in the second proviso to the mentioned section.

9. Second proviso of sub-section (1) of Section 115 of the Code of Civil Procedure, 1908 which was added by Act VI of 1992 clearly provides that when an application for the revision is made by the Applicant it is necessary to institute the same within 90-days of the

decision of the Subordinate Court. However, no such restriction of time period exists in the sub-section (1) of Section 115 of the Code of Civil Procedure, 1908 and this power can be exercised when the Subordinate Court has exercised a jurisdiction not vested in it or has failed to *exercise* the jurisdiction so vested or has acted illegally or with material irregularity. The controversy that crept up after the amendment in 1992 by adding second proviso has already been resolved by the Honourable Supreme Court of Pakistan and it has been settled that Applicant/Petitioner has no right to cause a delay and then seek the shelter of the power of the Court to exercise a jurisdiction, at its own. Reliance in this regard is placed on cases titled Federal Government of Pakistan and another versus Khurshid Zaman Khan and others (1999 S C M R 1007), Province of Punjab through Collector and others versus Muhammad Farooq and others (P L D 2010 Supreme Court 582), Province of Punjab through Collector, Toba Tek Singh and others versus Muhammad Farooq and others (2012 S C M R 1942), Muhammad Arshad versus Muhammad Nawaz (2017 C L C 1254) and Province of Punjab through District Officer Revenue, Rawalpindi and others versus Muhammad Sarwar (2014 S C M R 1358).

The relevant part of the case titled Province of Punjab versus Muhammad Sarwar (Supra) is as follows:-

“However, when the revisional jurisdiction is invoked by an aggrieved party, it is subject to the statutory provisions now incorporated in section 115. C.P.C. The second proviso thereto in unambiguous terms lays down the period of limitation for applying to the Court by mentioning that “provided that such

application shall be made within ninety days". Like all other statutory provisions prescribing time period in which a matter is to be brought before the Court the second proviso to section 115(1), C.P.C. to be applied with the same vigor. Thus, where an aggrieved party seeks redressal against the Judgment or order through the revisional powers of the Court under section 115, C.P.C. he has ninety days to make the application, failing which the application is liable to be dismissed."

10. I also disagree with the contentions of learned counsel for the Petitioners that the benefit of time should be allowed in view of the fact that certified copy of the judgment and decree passed by the learned Trial Court was provided on 22.06.2013. This argument is misconceived for two reasons:-

(i) The first proviso to sub-section (1) of Section 115 of the Code of Civil Procedure, 1908 does not require that a certified copy of the pleadings, documents and orders of Subordinate Court are required to be appended. It simply says that the copies of the said documents should be attached. This aspect has also been resolved by this Court in case titled Muhammad Arshad versus Muhammad Nawaz (2017 C L C 1254). The relevant part of Paragraph No.7 reads as under:-

"The above cited provision of law makes it obligatory for the petitioner to furnish copies of the pleadings, documents and order of the subordinate Court along with revision petition. The word "certified" is absent in the above proviso to section 115(1), C.P.C. Inference from the omission of word "certified" clearly absolves the petitioner from filing certified copies of the impugned judgments etc. along with revision petition."

(ii) The certified copy was supplied to the Petitioners by the learned trial Court on the same day when it was requested for i.e. 22.06.2013. No benefit of period prior to 22.06.2013 is available to the Petitioners. Delay in approaching the Copying Agency has not, in any manner, extended the benefit under Section 12 of the Limitation Act, 1908.

11. While perusing the file/record, I have not noticed any illegality or material irregularity to exercise the power under sub-section (1) of Section 115 of the Code of Civil Procedure, 1908.

12. In view of the reasons recorded above, C.M. No.02-C of 2013 is dismissed and consequently, main civil revision is also **dismissed**.

(Sultan Tanvir Ahmad)
Judge

APPROVED FOR REPORTING

*Iqbal**

Judge